

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

3. DEREK BYRNE V. CHRISTINA BYRNE

22FL0036

On March 10, 2026, Petitioner filed a Request for Order seeking child support orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were served on March 27, 2026.

The Department of Child Support Services (DCSS) filed its Responsive Declaration to Request for Order on April 1st. It was served on March 30th.

Petitioner filed and served his updated Income and Expense Declaration on May 21st.

Respondent filed her Responsive Declaration to Request for Order and her Income and Expense Declaration on May 27th however there is no Proof of Service for either document therefore the court cannot consider them.

Because DCSS is providing child support enforcement services in this matter, the issue of child support is continued to the DCSS calendar in Department 10 on Monday, August 10th at 8:30 AM to be heard by the child support commissioner in accordance with Family Code § 4251.

TENTATIVE RULING #3: BECAUSE DCSS IS PROVIDING CHILD SUPPORT ENFORCEMENT SERVICES IN THIS MATTER, THE ISSUE OF CHILD SUPPORT IS CONTINUED TO THE DCSS CALENDAR IN DEPARTMENT 10 ON MONDAY AUGUST 10TH AT 8:30 AM TO BE HEARD BY THE CHILD SUPPORT COMMISSIONER IN ACCORDANCE WITH FAMILY CODE § 4251.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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4. JILL CURTIS V. FRANCIS CURTIS

24FL0704

On March 11, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders as well as child and spousal support. He filed his Income and Expense Declaration and a Memorandum of Points and Authorities concurrently therewith. All required documents were served on March 13th.

The parties attended Child Custody Recommending Counseling (CCRC) on April 10, 2026 and were able to reach agreements on some issues. A report codifying those agreements was prepared and mailed to the parties the same day.

Petitioner filed and served her Responsive Declaration to Request for Order, her Income and Expense Declaration and her Declaration of Petitioner Jill Curtis on May 29th.

Respondent filed and served his reply declaration on June 4th.

Respondent is requesting joint legal custody, though he asks that he be awarded primary physical custody. He proposes the child have visits with Petitioner at the child's discretion. He further requests guideline child support and guideline spousal support back to the date of filing the Petition in accordance with his Exhibit A proposed Xspouse report. He also asks the court to order the parties to equally split any out-of-pocket medical costs for the minor pursuant to FL-192.

Petitioner asks the court to adopt the agreements in the CCRC report. She further asks the court to deny Respondent's requests for retroactive child and spousal support. She does not oppose guideline child support orders but she asks that Respondent be ordered to provide documentation detailing his business expenses for the year 2024 and 2025.

After reviewing the filings as outlined above, the court does find the agreements contained in the April 10, 2026 CCRC report to be in the best interests of the minor and they are hereby adopted as the orders of the court.

The court is adopting the Xspouse report attached as Exhibit A to the RFO. Utilizing the same figures as outlined therein, the court finds that child support is \$1,497 per month and spousal support per the Alameda formula is \$293 per month. Petitioner is ordered to pay Respondent a total of \$1,789 per month as and for child support and temporary spousal support, payable on the 15th of each month until further order of the court or legal termination.